



CHAPTER xii.

An Act for incorporating and conferring powers on the A.D. 1917.
Haslemere and District Gas Company.

[10th July 1917.]

WHEREAS the Haslemere Gas Company Limited (in this Act called "the Limited Company") were in the year one thousand eight hundred and sixty-eight incorporated under the Companies Act 1862 with a nominal capital of one thousand five hundred pounds divided into three hundred shares of five pounds each:

And whereas prior to the year one thousand nine hundred and five the said capital was increased to the sum of ten thousand five hundred pounds:

And whereas by the Haslemere Gas Order 1905 (in this Act referred to as "the Order of 1905") confirmed by the Gas Orders Confirmation Act 1905 the Limited Company were authorised to supply and sell gas within the limits described in such Order and to raise share capital not exceeding twenty-four thousand pounds (inclusive of the sum of ten thousand five hundred pounds original capital) and to borrow on mortgage to the amount of one-third of such capital:

And whereas the share capital of the Limited Company now consists of twenty-three thousand four hundred and thirty-five pounds in four thousand six hundred and eighty-seven ordinary shares of five pounds each of which the sum of ten thousand five hundred pounds is entitled to a maximum dividend of ten pounds per centum per annum and the remaining sum of twelve thousand nine hundred and thirty-five pounds is entitled to a maximum dividend of seven pounds per centum per annum and the Limited Company have in respect of the issue of shares received premiums to the amount of five hundred and sixty-two pounds fifteen shillings:

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And whereas the Limited Company have borrowed and now owe on mortgage the sum of five thousand eight hundred and fifty pounds by the issue of debentures bearing interest at the rate of five pounds per centum per annum and in addition now owe on mortgage the sum of three hundred and fifty pounds :

And whereas the demand for gas in the district supplied by the Limited Company has increased and is increasing :

And whereas it is expedient that the Limited Company be dissolved and re-incorporated with further powers and that the Company so re-incorporated should be authorised to maintain continue extend and improve the existing gasworks of the Limited Company and to construct and maintain further gasworks on the land to be acquired by the Company under the powers of this Act and to supply gas within the limits defined by this Act :

And whereas the portion of the parish of Witley in the county of Surrey included within the limits of supply as defined by this Act is within the authorised limits of the Godalming Gas and Coke Company Limited (in this Act called "the Godalming Company") under the Godalming Gas Order 1878 confirmed by the Gas and Water Orders Confirmation Act 1878 but the Godalming Company are not supplying and never have supplied gas to that portion of the said parish and are willing that it should be supplied with gas by the Company and it is therefore expedient that so much of the Godalming Gas Order 1878 and the Act confirming the same as relates to the supply of gas to that portion of the said parish should be repealed as by this Act provided :

And whereas it is expedient that the Company should be empowered to acquire and to use for gas purposes the lands described in Part II. of the First Schedule to this Act :

And whereas it is expedient that the Company should be authorised to raise additional capital for the purposes of their undertaking and that such further powers should be conferred upon the Company and such further provisions enacted as are contained in this Act :

And whereas plans showing the lands authorised by this Act to be purchased compulsorily together with a book of reference containing the name of the owner or reputed owner of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the

peace for the county of Surrey and are hereinafter respectively referred to as the deposited plans and book of reference: A.D. 1917.

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Haslemere and District Gas Act 1917. Short title.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with or varied by the provisions of this Act are hereby incorporated with and form part of this Act:— Incorporation of Acts.

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital);

Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III.
(relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section; and

The Lands Clauses Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless Interpretation.

A.D. 1917. — there be something in the subject or context repugnant to such construction And in this Act—

The expression “the Limited Company” means the Haslemere Gas Company Limited;

The expression “the Company” means the Haslemere and District Gas Company incorporated by this Act;

The expression “the Godalming Company” means the Godalming Gas and Coke Company Limited;

The expressions “the works” “the gasworks” and “the undertaking” respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be acquired made continued and maintained by the Company and any improvement and extension thereof which they may make or construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively;

The expression “the limits of supply” means the limits within which the Company are by this Act authorised to supply gas;

The expression “British thermal units” means British thermal units gross per cubic foot of gas;

The expression “calorific power” means the total heat value expressed in British thermal units.

RE-INCORPORATION.

Re-incorporation of Company.

4. From and after the passing of this Act the Limited Company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have already subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes hereinafter mentioned and shall be and are hereby re-incorporated by the name of “The Haslemere and District Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and of the undertaking.

5. The Company shall be established for the purpose of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of supply and generally may carry on the business usually carried on by a gas company.

A.D. 1917.
General
purposes of
Company.

6. Subject to the provisions of this Act all the lands gas-works erections buildings rights and easements which immediately before the passing of this Act were vested in the Limited Company or any person in trust for them or to which the Limited Company were in anywise entitled and all plant mains pipes retorts meters and other apparatus and things which immediately before the passing of this Act were the property of the Limited Company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the Limited Company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the Limited Company and immediately before the passing of this Act in force shall as from the passing of this Act be and the same are hereby transferred to and vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the Limited Company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Present
property of
Limited
Company
vested in
Company.

7. Subject to the provisions of this Act the memorandum and articles of association of the Limited Company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the Limited Company and the members thereof as such But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the Limited Company if this Act had not been passed.

Memo-
randum and
articles of
association
of Limited
Company to
be void.

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Saving of
existing
rights and
liabilities.

8. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the Limited Company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the Limited Company and the members thereof as such and the property of the Limited Company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Contracts
prior to
Act to be
binding.

9. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the Limited Company or any trustees or persons acting on behalf of the Limited Company or by to or with any other person to whose rights and liabilities they have succeeded and at the passing of this Act in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Limited Company or the trustees or persons acting on behalf of the Limited Company the Company had been a party thereto.

Actions &c.
not to abate.

10. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the Limited Company or any member thereof in relation to the affairs of the Limited Company or to which the Limited Company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or

against the Limited Company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the Limited Company and its members respectively. A.D. 1917.

11. Every person who (being authorised so to do) before the passing of this Act entered into any bond covenant contract or engagement on behalf of the Limited Company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement. Indemnity.

12. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the Limited Company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the Limited Company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company to satisfy liabilities of Limited Company.

13. All accounts for gas supplied and sums of money which immediately before the passing of this Act were due or accruing to the Limited Company shall be payable to and may be collected and recovered by the Company in like manner as if they were due or accruing to the Company. Recovery of gas rents &c.

14. All persons who immediately before the passing of this Act owed any money to the Limited Company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the Limited Company or for the payment of which the Limited Company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before passing of Act.

15. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the Limited Company shall remain in full force and Certificates &c. to remain in force.

A.D. 1917. — continue and be available in all respects as if such memorandum and articles had not been avoided.

Books &c.
continued
evidence.

16. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to
continue
until re-
moved.

17. All officers and servants of the Limited Company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto attaching until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
register of
members to
be continued.

18. The books kept by the Limited Company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and shall be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

CAPITAL.

Capital.

19.—(1) The capital of the Company shall be thirty-eight thousand four hundred and thirty-five pounds divided as follows :—

(a) Twenty-three thousand four hundred and thirty-five pounds of ordinary stock (in this Act called “the original capital”) to be divided among the holders of shares in the Limited Company in manner hereinafter provided :

(b) Fifteen thousand pounds (in this Act called “the additional capital”) to be raised in manner hereinafter provided.

(2) The Company may convert into stock the whole or any part of the additional capital when fully paid up.

Division of
original
capital.

20. The original capital shall be divided into ten thousand five hundred pounds ordinary stock (in this Act called “‘A’

ordinary stock”) and twelve thousand nine hundred and thirty-five pounds ordinary stock (in this Act called “‘B’ ordinary stock”).

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21. Forthwith after the passing of this Act the Company shall issue and allocate the original capital as follows (that is to say):—

Allocation
of original
capital.

- (1) The “A” ordinary stock shall be divided among and vested in the several persons who immediately before the passing of this Act were registered as holders of the ten thousand five hundred pounds ordinary capital entitled to a maximum dividend of ten per centum per annum issued by the Limited Company in the proportion of five pounds of “A” ordinary stock for each five pounds of such ordinary capital held by them respectively:
- (2) The “B” ordinary stock shall be divided among and vested in the several persons who immediately before the passing of this Act were registered as holders of the twelve thousand nine hundred and thirty-five pounds ordinary capital entitled to a maximum dividend of seven per centum per annum issued by the Limited Company in the proportion of five pounds of “B” ordinary stock for each five pounds of such ordinary capital held by them respectively:
- (3) Upon the passing of this Act there shall be created by virtue of this Act sufficient “A” ordinary stock and “B” ordinary stock to give effect to the provisions of this section:
- (4) All stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights on the same trusts and subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities as immediately before the passing of this Act affected the shares in the Limited Company in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting

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any shares in the Limited Company and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the stock created under or by virtue of this Act and substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any shares in the Limited Company are hereby expressly authorised and required to accept any "A" ordinary stock and "B" ordinary stock allocated to and vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the shares in the Limited Company for which such stock created under or by virtue of this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

Exchange of
certificates.

22. The Company shall call in and cancel the existing certificates of shares in the Limited Company and issue in lieu thereof certificates for the stock to which the holders of such shares are by this Act respectively entitled but no holder of any such shares shall be entitled to any certificate of proprietorship under this Act until he shall have delivered up to the Company to be cancelled the existing certificate of proprietorship of shares in the Limited Company issued to him before the passing of this Act or shall have proved to the reasonable satisfaction of the directors of the company the loss or destruction thereof but if any holder of any existing shares of the Limited Company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the shareholders' address book of the Limited Company the company may retain any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the shares so held by him until such existing certificate or certificates is or are sent or delivered to the company or is or are proved to the reasonable satisfaction of the company to have been lost or destroyed and an indemnity is given against any claim in respect of such lost or destroyed certificate to the satisfaction of the directors of the company.

23.—(1) Any transfer of ordinary stock may be in multiples of one pound so long as by such transfer no holding of any stockholder of the Company is rendered less than five pounds of stock. A.D. 1917.
Multiples
of stock.

(2) Notice of the effect of this section shall be stated in all stock certificates.

24. The Company may from time to time raise additional capital not exceeding in the whole fifteen thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than five pounds. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifteen thousand pounds. Power to
raise addi-
tional
capital.

25.—(1) The Company may create and issue all or any of the preference shares or stock or debenture stock authorised to be created and issued under the powers of this Act so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose. Issue of
redeemable
preference
shares or
stock or
debenture
stock.

(2) If it is so provided in the resolution the Company may—

(a) Call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(b) Redeem the shares or stock or any part thereof either by paying off the shares or stock or by issuing to any shareholder or stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or re-issue shares or stock originally created and issued under this section. Provided that the creation and issue for the purpose of any particular class of shares or stock does not make the total nominal

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amount of such shares or stock created or re-issued exceed the amount of that class of shares or stock which the Company are for the time being authorised to create.

(3) The Company shall not redeem out of revenue any debenture stock or preference shares or stock created under this section.

New shares or stock to be sold by auction or tender.

26.—(1) All shares or stock created as additional capital under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of each urban district council and rural district council whose district or any portion of whose district is within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be. A.D. 1917.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

27. The additional capital created by the Company under the powers of this Act shall be part of the general capital of the Company and the new shares or stock therein and the holders thereof respectively shall in proportion to the amount of their shares or stock be entitled to the like rights of voting and any other rights qualifications and privileges and be subject to the like provisions and liabilities as the other holders of shares or stock of the same class or description. Privileges of holders of additional capital.

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BORROWING POWERS.

Power to
borrow.

28. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of six thousand two hundred pounds already borrowed by the Limited Company) one-third part of the amount of the capital of the Company which at the time of borrowing has been actually issued or raised by the Company under the powers or in pursuance of the provisions of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies. Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof have or has been fully paid up.

Priority of
mortgages
and debenture
stock
over other
debts.

29. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Debenture
stock.

30. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without

respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. A.D. 1917.

31. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being owing by the Company on mortgage. Appointment of receiver.

32. All mortgages bonds and debentures granted by the Limited Company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages bonds and debentures and subject to the provisions of the Acts under which such mortgages bonds and debentures were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Priority of existing mortgages.

33. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend. Application of moneys.

34. The Company shall not in any year pay out of their profits any larger dividends on the original capital than ten pounds in respect of every one hundred pounds paid up of such capital as shall have been issued as "A" ordinary stock and seven pounds in respect of every one hundred pounds paid up of such capital as shall have been issued as "B" ordinary stock nor any larger dividend on the shares or stock in the additional capital than seven pounds in respect of every one hundred pounds actually paid up of such capital. Profits of Company limited.

35. The directors of the Company may in any year declare and pay an interim half-yearly dividend out of the Interim dividend.

A.D. 1917. profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the amount of the authorised rate of dividend upon any shares or stock of the Company.

Closing of transfer books previous to declaring interim dividend.

36. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published or circulating in the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Restrictions as to raising money during war.

37. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money or issue any debenture stock (except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act") during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Receipt in case of persons not sui juris.

38. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

MEETINGS.

Ordinary meetings.

39. The first ordinary meeting of the Company shall be held within six months after the passing of this Act and all subsequent ordinary meetings of the Company shall be held yearly in the month of October at the Company's principal office or at such other place and at such other time as shall be appointed for that purpose by an order of the directors.

Quorum of general meetings

40. The quorum of general meetings shall be members personally present not being less than seven in number and holding or representing by proxy not less than one-twentieth part of the capital of the Company for the time being issued and entitling the holders to vote in respect thereof.

41. The prescribed scale of voting at general meetings of the Company shall be one vote for every complete five pounds of ordinary stock or one vote for each share held by any shareholder. A.D. 1917.
Scale of
voting.

DIRECTORS AND AUDITORS.

42. The number of directors shall be six.

Number of
directors.

43.—(1) The qualification of a director shall be the possession in his own right of shares or stock of the Company to the nominal amount of not less than one hundred pounds. Qualification
of directors.

(2) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

44. The quorum of a meeting of directors shall be three.

Quorum of
directors.

45. William Stafford Ambrose Ardagh Allen Chandler Arnold Lyndon William Heather John Henry Meadows and Joseph Purkis shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

First direc-
tors.

46. At the first ordinary meeting held after the passing of this Act the share or stock holders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year (other than the first ordinary meeting held after the passing of this Act) the share or stock holders present in person or by proxy shall (subject to the provisions hereinbefore contained for varying the number of directors) elect persons to supply the places of directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act

Election of
directors.

A.D. 1917. 1845 and the several persons elected at any such meeting being
— neither removed nor disqualified nor having died or resigned shall
continue to be directors until others are elected in their stead in
manner provided by the same Act.

uditors. 47. The prescribed number of auditors shall be one but the
number may be increased to two by a resolution of the share or
stock holders of the Company passed at a general meeting and
such auditor or auditors shall be a member or members of the
Institute of Chartered Accountants or the Society of Incorporated
Accountants and Auditors or an accountant or accountants
approved by the Board of Trade and need not hold shares or
stock in the Company.

LANDS AND WORKS.

Power to take lands. 48. Subject to the provisions of this Act the Company may
for the purposes of their undertaking enter upon take and use
such of the lands delineated on the deposited plans and described
in the deposited book of reference as they may require for the
purposes of their undertaking Provided that the Company shall
not pull down any of the cottages erected on the said lands or
(except for any breach of the law as between landlord and tenant)
displace any of the occupants thereof until the expiration of two
years from the termination of the present war.

As to private rights of way over lands taken compulsorily. 49. All private rights of way over any lands which are
under the powers of this Act authorised to be acquired com-
pulsorily shall as from the date of the acquisition of such lands
be extinguished Provided that the Company shall make full
compensation to all parties interested in respect of any such
rights and such compensation shall be settled in manner provided
by the Lands Clauses Acts with reference to the taking of lands
otherwise than by agreement.

Correction of errors in deposited plans and book of reference. 50. If there be any omission mis-statement or wrong
description of any lands or of the owner of any lands shown
on the deposited plans or specified in the deposited book of
reference the Company after giving ten days' notice to the
owner of the land in question may apply to two justices acting
for the county of Surrey for the correction thereof and if it appear
to the justices that the omission mis-statement or wrong descrip-
tion arose from mistake they shall certify the same accordingly
and they shall in their certificate state the particulars of the
omission and in what respect any such matter is mis-stated or

wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Surrey and a duplicate thereof shall also be deposited with the clerk of the district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of district respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

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51. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

52. The Company may for the purposes of the undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the First Schedule to this Act any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the First Schedule to this Act.

Power to purchase lands by agreement.

53. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands (so far as such provisions are applicable) the Company may sell or let on lease for such periods as they think fit or otherwise dispose of any lands or property for the time being belonging to them acquired under the powers of this Act and which may not at the time be required for the purposes of the undertaking or any easements or rights in or under any lands for the time being belonging to them and may retain and hold or sell and dispose of any interest in or reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

Power to sell and lease lands.

54. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company

Persons under disability may grant easements &c.

A.D. 1917. any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Construction
and main-
tenance of
gasworks.

55.—(1) Subject to the provisions of this Act the Company may upon the lands described in Part I. of the First Schedule to this Act maintain alter improve enlarge extend renew or discontinue the existing gas and other works of the Limited Company and may upon the lands described in Part II. of the said schedule—

- (a) Erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply ;
- (b) Work up and convert the residual products arising directly or indirectly from the manufacture of gas by them.

(2) The Company may also purchase—

- (a) the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Company are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Company in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them ;
- (b) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid :

But the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary.

56. The Company may within a radius of three hundred yards of their existing gasworks lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with the undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

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Power to lay pipes &c. for ancillary purposes.

57. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act:

Power to lay pipes in private streets.

Provided that for the purposes of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the local authority of any district shall be deemed in addition to any other persons to be persons having the control or management of any such street as aforesaid:

Provided further that the Company shall not without the consent of the London and South Western Railway Company lay down or place any pipe or other work in any street laid out but not dedicated to the public use which is the property of such railway company.

SUPPLY PRICE AND TESTING OF GAS.

58. The limits within which the Company may supply gas under this Act shall be the parishes and parts of parishes specified in the Second Schedule to this Act.

Limits of supply.

59. So much of the Godalming Gas Order 1878 confirmed by the Gas and Water Orders Confirmation Act 1878 as authorises the Godalming Company to supply gas within that portion of the parish of Witley in the county of Surrey which is included within the limits of supply is hereby repealed and from and after the passing of this Act all the powers and

Repeal of power of Godalming Company to supply gas within part of parish of Witley.

A.D. 1917. obligations of the Godalming Company with reference to the supply of gas within such portion of the said parish shall cease and determine.

Price of gas.

60. The price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed five shillings per thousand cubic feet. Provided that at any time after the expiration of three years from the passing of this Act the Board of Trade may if they think fit by order in writing signed by a secretary or an assistant secretary of the said Board alter the said maximum price either by substituting any other sum for the said sum of five shillings or by fixing a standard price with sliding scale as to profits and as from the date specified in such order (hereinafter referred to as "the specified date") the provisions set forth in the Third Schedule to this Act shall be in force and have effect and this Act shall be read and construed accordingly. A copy of any such order made by the Board of Trade shall be published in the London Gazette and a copy of the said gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

Charge for gas supplied by means of prepayment meters.

61.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connexion therewith. A.D. 1917.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

62. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing-place shall be the testing-place provided by the Limited Company in pursuance of section 30 of the Haslemere Gas Order 1905 or a new testing place to be provided by the Company in lieu thereof on some part of the lands described in the First Schedule to this Act. Testing-place.

63. For the purposes of the appointment of a gas examiner under the provisions of section 30 of the Gasworks Clauses Act 1871 an application to two justices by the London and South Western Railway Company shall be deemed to have been made and to have the like effect for all purposes as though such application had been made by not less than five consumers of the gas of the undertakers. Application as to appointment of gas examiner by London and South Western Railway Company.

64.—(1) Within six months from the passing of this Act the Company shall provide at the prescribed testing place apparatus for testing the calorific power of the gas supplied by them at such testing-place similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905. Testing for calorific power.

(2) The gas supplied by the Company shall be tested for calorific power in the mode and under the conditions for the time being prescribed by the Metropolitan Gas Referees and shall be of a calorific power of five hundred British thermal units.

65. The following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Company:— Provisions as to testing for calorific power.

(1) Not more than one testing for calorific power shall be made on any one day (reckoned from midnight to midnight) except that in the event of the calorific

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power being on any testing at the prescribed testing-place ascertained to be below five hundred British thermal units the gas examiner shall forthwith give notice thereof to the Company and a second testing shall be made at an interval of not less than one hour from the time of making the first testing at the prescribed testing-place and the average of the two testings shall be deemed to be the calorific power of the gas on that day :

- (2) The Company may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer who shall not interfere in the testing :
- (3) The gas examiner shall forthwith give notice to the Company at their office of any defect of calorific power ascertained by him on any testing of the gas :
- (4) Section 12 of the Gasworks Clauses Act 1871 and so much of Schedule A of that Act as relates to the apparatus and mode of testing illuminating power shall not apply to the Company and sections 28 to 33 both inclusive of the said Act in their application to the Company shall be construed as if calorific power were therein referred to instead of illuminating power.

Penalties for
deficient
calorific
power.

66. Where the calorific power on any day of the gas supplied by the Company is less than five hundred British thermal units the Company shall be liable to the following penalties in respect of such deficiency (that is to say) :—

Where the deficiency does not exceed fourteen British thermal units two pounds ;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds ;

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds :

Provided that the Company shall not be liable for more than one penalty in respect of a deficiency of calorific power of the gas supplied on any one day.

Pressure.

67.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than fifteen-tenths of one inch in height at

the main or as near as may be to the junction therewith of the service pipe supplying the consumer except in so much of the parishes of Witley and Bramshott included within the limits of supply where the gas shall be supplied at such pressure as to balance a column of water not less than ten-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer: A.D. 1917.

Provided that all gas supplied by the Company to the London and South Western Railway Company shall be supplied at such pressure as to balance a column of water not less than twenty-tenths of one inch in height at the inlet of the primary meter or meters registering the supply to such company.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing-place or at any public lamp or on the premises of the London and South Western Railway Company at the inlet of the primary meter or meters registering the supply to such company as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

68. If within one month after the expiration of five years from the passing of this Act or after any subsequent period of five years the Company or any local authority or person who may appear to the Board of Trade to have a substantial interest in the matter apply to the Board of Trade to reduce or increase the standard calorific power or the pressure prescribed by this Act the Board of Trade after hearing the parties and any other persons who appear to the said Board to be interested may make such reduction or increase of the standard calorific power or of the prescribed pressure as they think fit. Revision of standard calorific power or pressure.

69. The Company if and when required at any time within two years after the passing of this Act by any consumer of gas supplied by the Company shall supply to such consumer and fix free of charge flat flame burners suitable in all respects for consumption of gas of the standard calorific power prescribed by this Act in substitution for any burners (not being incandescent burners) in use by the consumer before the passing of this Act. Suitable burners to be provided in lieu of those now in use.

Notice of this condition shall be given on each demand note of the Company during the period of two years hereinbefore mentioned.

A.D. 1917.
Saving as to
penalties.

70. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

MISCELLANEOUS.

Engines &c.
though fixed
to premises
to remain
property of
Company.

71. Subject as hereinafter provided all engines fittings apparatus and appliances (in this section referred to as "fittings") let by the Company under any statutory powers on hire or under hire purchase agreements shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the owners thereof Provided also that nothing in this section shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

Company
may enter
into con-
tracts for
supply of
gas.

72. The Company may enter into any contract with any local authority company or person for a supply of gas for different purposes to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price varying according to the purposes for which the gas is to be supplied and otherwise as may be agreed upon between the Company and the person taking such supply Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for similar purposes from the Company under similar conditions and circumstances.

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

73. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between

the Company's mains and the meter so far as such pipes and fittings are intended to be covered over : A.D. 1917.

- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

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Dwelling-
houses for
employees
&c.

74. The Company may purchase by agreement or take on lease houses cottages and other buildings for persons in their employ or for offices or showrooms for the purposes of their undertaking and may erect fit up maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Company
may refuse
to supply gas
in certain
cases.

75. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Gas con-
sumers to
give notice
to Company
before re-
moving.

76. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Power to
require use
of anti-
fluctuators
for gas
engines.

77. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his using or keeping in repair such anti-fluctuator and valve the Company may cease to supply him with gas The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Power to
enter pre-
mises and
remove fit-
tings.

78. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in

which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises. A.D. 1917.

79. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company. Period of error in defective meters.

80. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company. Notice to discontinue supply of gas.

81. The Company may contract with any local authority company or persons authorised to supply gas under Parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or other pipes or to interfere with any street beyond the limits of supply. Company may contract with local authorities &c. for supply in bulk.

82. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises under the powers conferred by this Act and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses. Occupier to pay expenses of reconnecting disconnected supply.

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Power to
supply gas
fittings &c.

83.--(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings (in this section referred to as "fittings") for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlords remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

Recovery of
demands.

84. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Repeal of
Haslemere
Gas Order
1905.

85. As from the passing of this Act and subject to the provisions of this Act the Haslemere Gas Order 1905 and so much of the Gas Orders Confirmation Act 1905 as relates thereto are hereby repealed.

Copy of
Act to be
registered.

86. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recovered summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

87. Nothing in this Act shall exempt the Company or the undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

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Saving as to general Acts.

88. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall apply and have effect (viz.) :—

For protection of London and South Western Railway Company.

- (a) In laying down repairing renewing or removing any mains or pipes or executing any other works in the exercise of the powers contained in this Act or in any Act incorporated therewith upon across over under or in any way affecting the South Western Railway or any bridge over or under such railway or any approaches to any such bridge within the South Western Company's boundary the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the South Western Company and according to such plans sections and specifications and except in case of urgent necessity at such times as shall be previously submitted to and as shall be reasonably approved in writing by him and shall be executed by and at the expense in all things of the Company and so as not to cause any injury to the said railway or to any such bridge or the approaches thereto within the South Western Company's boundary and shall within such boundary so execute any works as having regard to the existing level of the roadway shall interfere with or impede as little as possible any improvement or widening of such railway or bridge or the introduction of side openings to such bridge Provided that if the said engineer does not express his approval or disapproval of the said plans sections and specifications within twenty-one days after the same have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operation the Company may execute the work without his superintendence Provided always that should the South Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway

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they may themselves lay the same at the reasonable costs charges and expenses of the Company but so nevertheless that any mains or pipes so laid by the South Western Company shall be laid under the superintendence and to the reasonable satisfaction of the Company's engineer:

- (b) If any injury or damage to the railway works or property of the South Western Company or any interruption of the South Western Company's traffic shall be in any way occasioned by the Company or by their contractors agents or workmen the Company shall forthwith make full compensation to the South Western Company in respect thereof:
- (c) All mains pipes and other works of the Company upon across over under or in any way affecting the South Western Railway or any bridge over or under the same or the approaches thereto within the South Western Company's boundary shall be at all times maintained in good repair by the Company and in default of their being so maintained the South Western Company may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Company require the Company to forthwith put into good repair any such main pipe or other work as aforesaid as may be in want of repair and if the Company for seven days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity thereof the South Western Company may without any further notice to the Company repair the same and all expenses reasonably incurred by them in or about such repair shall be repaid to them by the Company Provided that in case of accidents happening or immediate danger being apprehended to the South Western Railway or any bridge over or under such railway or the approaches thereto by reason of any such main pipe or other work as aforesaid being in want of repairs the South Western Company may without giving such notice as aforesaid make such repairs as may be necessary and the expenses of the same shall be repaid as hereinbefore provided :

(d) If the South Western Company require under their existing powers to widen or alter their railway or to widen lengthen strengthen reconstruct alter repair lift or support any bridge over or under their railway or the approaches to such bridge the Company shall afford to the South Western Company all reasonable and proper facilities for the purposes and the Company shall pay to the South Western Company any additional expense which the South Western Company may incur in effecting such widening lengthening strengthening reconstructing altering repairing lifting or supporting or in the maintenance of any bridge approach or other work of the South Western Company by reason of the existence or user of the mains pipes or other works constructed under the powers of this Act: A.D. 1917.

(e) The Company shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the South Western Railway with reference to and during such construction and repairs so far as such costs may be in case of difference determined by the arbitrator to have been necessary but such superintendence by the South Western Company shall not relieve the Company from liability for any accident which may be occasioned by or through the said works or by their contractors agents or workmen:

(f) Any difference which may arise between the South Western Company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and any such arbitration shall be subject to the provisions of the Arbitration Act 1889.

89. For the protection of the urban district council of Haslemere the rural district council of Hambledon the rural district council of Midhurst and the rural district council of Alton (each of which councils in relation to its district is in

For protection of Haslemere Urban and Hambledon Midhurst

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and Alton
Rural
District
Councils.

this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect as regards the execution by the Company of any works under the powers of this Act (that is to say):—

- (1) All mains and pipes to be laid in any district road repairable by the council or over any bridge for the time being vested in the council or the approaches thereto so repairable shall be laid in such position in or at the side of the road and at such depth and in the case of a main or pipe which it is reasonably necessary to lay otherwise than in the roadway or footway over the bridge the same shall be carried on the structure of such bridge and in such manner as the council in writing under the hand of their surveyor may reasonably direct:
- (2) Except in cases of laying down connecting or repairing consumers' service pipes and except in cases of leakage bursting or other emergency the notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any such road bridge or approach be not less than seven clear days instead of three clear days:
- (3) The plan required by section 9 of the Gasworks Clauses Act 1847 shall in the case of interference with any such bridge or approach and except in the case of repairs or renewals be accompanied by a section of the proposed works:
- (4) Any works carried out by the Company under this Act shall be so executed as not to stop and to impede or interfere with as little as may be the traffic on any such road bridge or approach and the Company shall not break up at any one time a greater length than 100 yards of any such road:
- (5) Nothing in this Act contained shall interfere with the right of the council to alter the level or deviate or improve in any manner they think fit any such road in or along which any mains pipes or works of the Company shall have been laid or to remove alter widen or rebuild any such bridge or the approaches thereto over or attached to which any such mains

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pipes or works are carried and the Company shall as soon as reasonably practicable after receiving notice in writing under the hand of the clerk or surveyor to the council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined as hereinafter provided and the council shall repay to the company the expense reasonably incurred by the Company in effecting any such alteration of the position of any such mains pipes or works Provided that during the alteration widening or rebuilding of or in the case of the removal of any such bridge or the approaches thereto as aforesaid the council shall afford all reasonable facilities to enable the Company to carry such mains pipes and works across any stream river or watercourse so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or pipes :

- (6) If the Company in the execution of any works in or affecting any such road bridge or approach shall cause any injury or disturbance thereto and shall neglect or refuse to make good all such injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the council after fourteen days' notice in writing to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works reasonably necessary for making good all such injury or disturbance and the Company shall repay to the council all expenses which the council shall reasonably and properly incur in carrying out such works :
- (7) All works for the maintenance repair or re-instatement of any such road bridge or approach which under this Act or any Act incorporated herewith the Company are required to execute may be executed by the council and the Company shall pay to the council the actual cost reasonably incurred by the council in so doing :
- (8) If any difference shall at any time arise between the council and the Company touching this section or anything to be done or not to be done thereunder

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such difference shall be referred to and determined by an arbitrator to be agreed upon between the parties or failing agreement appointed by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of county councils of Surrey Southampton and West Sussex.

90. For the protection of the county council of Surrey the county council of Southampton and the county council of West Sussex (each of which councils in relation to its county is in this section referred to as "the county council") the following provisions shall (unless otherwise agreed in writing between the Company and the county council) apply and have effect (that is to say):—

- (1) All mains pipes and works of the Company to be laid after the passing of this Act in or along any main road or in or upon or across any county or main road bridge shall be laid in such position in or at the side thereof as the county council in writing under the hand of their county surveyor may reasonably direct:
- (2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall (subject to the provisions of this section) extend and apply to all main roads and county or main road bridges or the roadway over the same or the approaches thereto and to all other property of the county council opened and broken up or interfered with by the Company in the exercise of the powers of this Act provided that the notice required by the eighth section of that Act shall (except for laying connecting or repairing consumers' service pipes and except in cases of accidental leakage or burst or other emergency) be not less than seven days instead of three days:
- (3) The plan required by the ninth section of the last-mentioned Act shall clearly define the depth below the surface and the position in the roadway or at the side thereof or in or upon the structure of any county or main road bridge at which all mains pipes and works of the Company are proposed to be constructed

or laid and shall be accompanied by a section of the proposed works and shall (except as aforesaid) be delivered to the county council or their surveyor by the Company not less than in the case of a bridge or the approaches thereto one month and in all other cases seven days before the Company commence to open or break up any main road or interfere with any county or main road bridge or roadway over the same or approaches thereto or other property of the county council for the purpose of executing the said works: A.D. 1917.

- (4) If the county council shall give written notice to the Company of such their desire before the Company commence to lay down any main or pipe in the roadway of any such road (including the roadway over any such bridge or approach) the Company shall under the supervision and to the reasonable satisfaction of the county council fill in any trench or excavation made by them in connexion with such work to the height of eight inches above the top of such main or pipe and the county council shall fill in the remainder of the trench or excavation and shall reinstate and make good the surface of the portion of the roadway broken up by the Company and upon the completion of such filling in re-instatement and making good by the county council the Company shall repay to the county council the expense reasonably incurred by them in such filling in re-instatement and making good but the Company shall not be under obligation to pay to the county council any greater sum than the county council need have reasonably incurred to carry out such filling in by the county council and to reinstate and make good the surface of the said portion of the roadway with material of the same substance and character and so far as reasonably practicable with the same material as that with which such portion was made up immediately before the roadway was so broken up When the county council give to the Company any notice under this subsection the Company shall be under no liability to fill up the trench or excavation beyond the height of eight inches above the top of the main or pipe nor for maintenance

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for any period of the portion of the roadway so broken up by them and the county council shall indemnify the Company against all claims and liabilities arising out of or in course of such filling in re-instatement and making good by the county council or any act or default of the county council in relation thereto:

- (5) If the Company in the execution of any works in or affecting any main road or county or main road bridge or the approaches thereto shall cause any damage injury or disturbance thereto and shall neglect or refuse to make good all such damage injury or disturbance to the reasonable satisfaction of the county council then it shall be lawful for the county council after seven days' notice to the Company of the alleged neglect or refusal and of the works they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works:
- (6) The Company shall not interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the county council which consent shall not be unreasonably withheld but may be given upon such conditions (other than a money payment) as the county council or their surveyor may reasonably determine:
- (7) Nothing in this Act contained shall interfere with the right of the county council to alter the level of deviate or improve in any manner they think fit any main road in or along which any mains pipes or works of the Company shall have been laid and the Company shall forthwith on receiving notice in writing under the hand of the clerk or surveyor to the county council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration in the manner hereinafter provided and the county council shall not make any compensation to the Company

for any expense or loss to which the Company may be put in consequence of any such alteration deviation or improvement: A.D. 1917.

- (8) Nothing in this Act contained shall interfere with the right of the county council at any time or times to remove alter or rebuild any county or main road bridge or the approaches thereto over near or attached to which any mains pipes or works of the Company are carried in the same manner as they might have removed altered or rebuilt such bridge or the approaches thereto if this Act had not been passed and such mains pipes or works had not been laid over or near or attached to such bridge and the county council shall not make any compensation to the Company for any expense or loss to which the Company may be put in consequence of any such alteration deviation or improvement and in the event of any such bridge or the approaches thereto over or near or attached to which any such mains pipes or works are laid being removed altered or rebuilt as aforesaid the Company shall at their own cost in all things alter the position of any works by which such mains pipes or works are carried over or near or attached to such bridge or the approaches thereto as aforesaid Provided that during the removal alteration or rebuilding of such bridge or the approaches thereto as aforesaid the county council shall at the cost of the Company afford all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river so as not to interrupt the continual supply of gas or to diminish the pressure of such supply through such mains or pipes:
- (9) All works shall be executed so as not to stop or unreasonably interfere with the traffic over or along any main road or any main road or county bridge or the approach thereto and the Company shall not without the consent of the county council under the hand of their surveyor open or break up at any one time a greater consecutive length of such road bridge and approach than one hundred yards nor shall such openings or breakings up be carried out without leaving where reasonably practicable a clear space of

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one hundred yards between consecutive openings or breakings up unless with the like consent. Provided that such consent shall not be unreasonably withheld and if any difference of opinion shall arise between the Company and the county council as to whether any works proposed by the Company will unreasonably interfere with the traffic over or along any main road county bridge or approach or as to the withholding of any such consent as aforesaid such difference shall be determined as provided by subsection 15 of this section :

- (10) The Company shall on demand pay to the county council the reasonable additional costs which the county council may incur in the repair and reinstatement of so much of any main road including the roadway over any county or main road bridge and the approaches thereto as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of any of the works of the Company or any part or parts thereof or by reason of the passage of the traffic of the Company or their contractors or servants :
- (11) The surplus paving metalling or materials removed during the laying of any mains pipes or other works shall not be placed on the metalled portion of any main road or any county or main road bridge or the approaches thereto without the written consent of the county council and subject to such conditions and directions as they may reasonably require or give :
- (12) All surplus paving metalling or materials removed during the laying of the mains pipes or works on any main road or in upon or across any county or main road bridge and not required by the Company for the purpose of reinstating and making good the said road or bridge may be used by the county council for the maintenance and repair of any main or other road in the county and in that case shall be removed by and at the expense of the county council :
- (13) The county council shall not be liable for or in respect of any damage or injury done to any work of the

Company by reason of such work being laid at a depth below the surface of any main road insufficient for its protection from injury arising from the use of any steam or other roller for the repair of such road or from the passage of the traffic in such road or in repairing any county or main road bridge or the approaches thereto or by reason of the non-repair of any such bridge or approaches: A.D. 1917.

- (14) The Company shall pay to the county council the reasonable expenses incurred by them in relation to the reasonable superintendence by the county surveyor of any work to be done by the Company under the provisions of this section:
- (15) If any difference at any time arises between the county council and the Company concerning this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any reference to arbitration under this section:
- (16) In this section the expression county or main road bridge shall include any culvert carrying any main road and vested in the county council.

91. If at any time after the expiration of four years from the passing of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of gas in accordance with the provisions of this Act in that part of the parish of Bramshott which is included in the limits of supply as defined in the Second Schedule to this Act (which said part is hereinafter referred to, as "the Bramshott limits") the local authority having jurisdiction within the Bramshott limits or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying gas in the Bramshott limits as aforesaid as if there were no company authorised by this Act to supply gas therein. Power to local authority of Bramshott parish to supply gas if Company fail to supply.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of gas in any part of the Bramshott limits such difference shall be settled on the application of either party by the Board of Trade.

A.D. 1917. — If and when such local authority company body or person shall commence to supply gas in the Bramshott limits in pursuance of the provisions of any Act of Parliament or Provisional Order as aforesaid the powers of the Company under this Act in respect of the Bramshott limits shall cease.

Costs of Act. **92.** All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act. A.D. 1917.

FIRST SCHEDULE.

LANDS FOR GASWORKS.

PART I.

A piece of land adjoining King's Road in the parish of Haslemere in the urban district of Haslemere in the county of Surrey containing two roods six perches or thereabouts and forming the site of the existing gasworks of the Limited Company.

PART II.

The land forming the site of all those cottages or dwelling-houses with the gardens thereto belonging situate in the parish of Haslemere in the urban district of Haslemere in the county of Surrey belonging or reputed to belong to A. Mordaunt-Chapman and known as Nos. 6 to 10 inclusive Belmont Terrace King's Road Haslemere aforesaid.

SECOND SCHEDULE.

LIMITS OF SUPPLY.

In the county of Surrey:—

The parish of Haslemere and so much of the parish of Thursley in the rural district of Hambledon as lies to the south of a line drawn from a point on the western boundary of the parish where the main London and Portsmouth road crosses that boundary at the reservoir of the Wey Valley Water Company and continuing thence along the said main road in an eastwardly direction until the said road turns to the north opposite Gibbet Hill thence in a straight line due east over Gibbet Hill to the eastern boundary of the parish near Hurt Hill Copse.

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The parish of Shottermill in the rural district of Farnham and so much of the parish of Frensham in the said rural district as lies to the south of a line drawn from the western boundary of the parish at the bridge carrying the road by Barford Mill over the river thence along the road in a north-eastwardly direction to the Crossways Inn thence along the road in a south-eastwardly direction to Butts Farm past the road leading to Green Cross and past Mayhews and Green Farms to a point where the road joins the road leading from Hindhead to Tilford thence along such last-mentioned road in a northwardly direction to Stock Farm and in an eastwardly direction past Marchants Farm to the eastern boundary of the parish near Hyde Farm and so much of the parish of Witley as lies west south and south-west of the road leading from Clammer Hill through Grayswood to Hindhead.

In the county of Southampton:—

The parish of Grayshott in the rural district of Alton and so much of the parish of Bramshott in the rural district of Petersfield as lies to the east of an imaginary line commencing at the point where the road leading from Bridge Farm Linchmere Common to Hewshott House is intersected by the boundary between the counties of Sussex and Southampton thence proceeding in a north-westerly direction along the said road to Hewshott House aforesaid thence continuing along the road from Hewshott House in a north-easterly direction past Hewshott Hill Farm thence in a north-westerly direction to the main Portsmouth road thence in a north-easterly direction along the said main road to the Seven Thorns public-house thence continuing in a northerly direction along the east side of the footpath leading from the said public-house to Chase Farm and thence along the east side of the road from Chase Farm to the boundary between the counties of Surrey and Southampton and there terminating.

In the county of West Sussex:—

The parishes of Linchmere Fernhurst North Ambersham and Lurgashall in the rural district of Midhurst.

(NOTE.—Where the boundary of the limits of supply is stated in this schedule to be along a road both sides of such road are intended to be included within the limits of supply).

THIRD SCHEDULE.

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The foregoing Act shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf therein contained prescribing a standard price for gas supplied by the Company with sliding scale as to profits and as from the specified date be read and construed subject to the modifications following:—

(1) Sections 30 to 34 (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or to form part of the foregoing Act and in construing the said Act for the purposes of the foregoing Act section 35 of the said Act shall be read and construed as though the words from “in case the whole” down to “have been paid” all inclusive had been omitted therefrom and as though the expression “the prescribed rate” included the authorised rates as defined by the foregoing Act together with any sum which under the provisions of this schedule might lawfully be carried to the special purposes fund.

Sections 30 to 34 of Gasworks Clauses Act 1847 shall cease to be incorporated.

(2) Notwithstanding anything contained in the foregoing Act the standard price to be charged by the Company for gas supplied by them to private consumers by meter shall be the price prescribed by such order of the Board of Trade as aforesaid per thousand cubic feet:

Price of gas with sliding scale as to dividend.

Provided that the Company may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary capital of the Company as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of the original capital of the Company and by three shillings and sixpence on every one hundred pounds of the additional capital of the Company issued as ordinary capital and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price has been reduced be increased above the standard rate of dividend by five shillings on every one hundred pounds of the original capital of the Company and by three shillings and sixpence on

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every one hundred pounds of the additional capital of the Company issued as ordinary capital and so in proportion for any fraction of one hundred pounds.

Power to
create a
special pur-
poses fund.

(3)—(i) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called "the Special Purposes Fund."

(ii) The Special Purposes Fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(A) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(iii) The maximum amount standing to the credit of the Special Purposes Fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(iv) The moneys forming the Special Purposes Fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(v) Resort may from time to time be had to the Special Purposes Fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

Application
of excess of
profits over
authorised
rates of
dividend.

(4) If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year :

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rates.

Power to
create a
reserve fund.

(5) Where in any year the dividend of the Company on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year being below the

standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of the foregoing Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the Reserve Fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as by this schedule specially provided no sum shall in any year be carried by the Company to any reserve fund.

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(6) Nothing in this schedule contained shall alter vary or affect any contract or agreement duly made or any liability incurred or notice given before the passing of the foregoing Act with respect to the gasworks of or the supply of gas by the Company.

Saving for
existing
contracts.

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